

Nekkanti Mounika vs Nekkanti Venkata Srinivas on 30 January, 2025

APHC010481902024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

THURSDAY ,THE THIRTIETH DAY OF JANUARY
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 359/2024

Between:

Nekkanti Mounika

...PETITIONER

AND

Nekkanti Venkata Srinivas

...RESPONDENT

Counsel for the Petitioner:

1. T V JAGGI REDDY

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking for transfer of F.C.O.P.No.1751 of 2024, on the file of the II Additional Family Judge at Visakhapatnam, to the Senior Civil Judge, Tanuku, West Godavari District, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is none other than the wife of the respondent/husband and their marriage was performed on 26.05.2013 at Vadali, Village, as per Hindu Rites and Caste Customs. During their wed-lock period, the petitioner/wife blessed with a male child and in view of the matrimonial disputes in between both the spouses; she has been residing along with her child aged about 8 years at her parents' house at Vadali

Village, Penugonda Mandal, West Godavari District. The petitioner/wife pleaded that she lodged a complaint dated 23.12.2021, against the respondent/husband and his family members before Penugoda Police Station in Crime No.394 of 2021, under Section 498-A of I.P.C., and under Sections 3 and 4 of Dowry Prohibition Act, 1961. After completion of investigation, Police laid a charge sheet and the same was registered as vide C.C.No.1071 of 2022 on the file of the Judicial Magistrate of First Class at Tanuku, West Godavari District. The petitioner further pleaded that she filed a Domestic Violence Case vide D.V.C.No.6 of 2022 on the file of the II Additional Judicial Magistrate of First Class at Tanuku, under Section 12 of Domestic Violence Act, 2005 and she also filed a Maintenance Case vide M.C.No.7 of 2022, on the file of the Principal Junior Civil Judge-cum-Judicial Magistrate of First Class at Tanuku, West Godavari District, seeking monthly maintenance case from the respondent/husband and the said three (3) cases are pending for adjudication before the competent Courts at Tanuku and the respondent/husband herein is also attending the cases proceedings before the competent Courts at Tanuku.

II. The petitioner/wife further pleaded that, to cause unnecessary inconvenience to her, the respondent/husband has filed F.C.O.P.No.1751 of 2024, on the file of the II Additional Family Judge, Visakhapatnam, under Section 13(1)(ia) of Hindu Marriage Act, 1955, seeking dissolution of the marriage. The petitioner/wife further contended that, the distance between Tanuku and Visakhapatnam is approximately more than 200 Kms, she being a women depending upon her parents along with her child aged about 8 years, it is very difficult for her to travel from Tanuku to Visakhapatnam to attend the divorce case proceedings on each and every adjournment without any male support and that she sought transfer of F.C.O.P.No.1751 of 2024, on the file of the II Additional Family Judge, Visakhapatnam, to the Senior Civil Judge, Tanuku, West Godavari District.

3. Heard learned counsel for the petitioner.

4. None appeared for the respondent.

5. The material on record prima facie goes to show that, the petitioner/wife has been residing along with her child aged about 8 years at Tanuku and she has instituted three (3) cases against the respondent/husband herein before the competent Courts at Tanuku and the respondent is also attending the case proceedings before the said competent Courts at Tanuku. It is also a fact that that the respondent/husband has filed F.C.O.P.No.1751 of 2024, on the file of the II Additional Family Judge, Visakhapatnam, under Section 13(1)(ia) of Hindu Marriage Act, 1955, seeking dissolution of the marriage, and the same is pending for adjudication. The contention of the learned counsel for the petitioner is that, the petitioner/wife is staying along with her child aged about 8 years at her parents' house at Tanuku, the distance between Tanuku and Visakhapatnam is more than 200 kms, since the petitioner being a woman depending upon her parents along with her child, it is very difficult for her to travel from Tanuku to Visakhapatnam to attend the divorce case proceedings which is filed by the respondent/husband herein before the II Additional Family Judge,

Visakhapatnam, on each and every adjournment without any male support, and that she was constrained to file the present transfer petition.

6. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

7. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.SaravanaKarthikSha² held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

(2000) 10 SCC 304 2022 LiveLaw (SC) 627

8. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request of the petitioner/wife, seeking for transfer of F.C.O.P.No.1751 of 2024 on the file of the II Additional Family Judge, Visakhapatnam, to the Senior Civil Judge, Tanuku, West Godavari District.

9. In the result, the Transfer Civil Miscellaneous Petition is allowed and the F.C.O.P.No.1751 of 2024, on the file of the II Additional Family Judge, Visakhapatnam, is hereby withdrawn and transferred to the Senior Civil Judge Court at Tanuku, West Godavari District. The learned II Additional Family Judge, Visakhapatnam, shall transmit the case record in F.C.O.P.No.1751 of 2024 to the Senior Civil Judge Court at Tanuku, West Godavari District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

30.01.2025 CVD JUSTICE V.GOPALA KRISHNA RAO Date: